

for Production (Set One) and to waive objections.

Defendant served Special Interrogatories (Set One) on June 5, 2025. Based on mail service, responses were due July 10, 2025. Defendant agreed, via email to extend the deadline July 19. On July 18, plaintiff sent responses by electronic service. Defendant argues that the email response, given no express agreement to accept electronic service, was the equivalent of no response. Therefore, he had no duty to meet and confer about the responses, and is entitled to responses without objection. Defendant filed this motion on July 30. Defendant's exhibit C shows that the parties communicated by email concerning the discovery. In sending the responses, Plaintiff states that they are sent "[p]ursuant to our agreement to accept service via email[.]"

An unrepresented party may consent to electronic service, by serving notice on all parties and filing the notice with the court (CCP § 1010.6(c)(2).) Plaintiff filed a consent to electronic service on June 27, 2025. Defendant filed a consent to electronic service with the court on June 4, 2025. Although the court file does not apparently contain a proof of service of the consent, service is for the benefit of the other party, and defendant cannot rely on his own failure to serve the filed document.

The motion is **denied**.

8. 9:00 AM CASE NUMBER: C24-03170
CASE NAME: MARIE DUFFY VS. FCA US, LLC.
HEARING ON DEMURRER TO: RE 1ST AMENDED COMPLAINT
FILED BY: FCA US, LLC.
TENTATIVE RULING:

Before the Court is a demurrer by FCA US, LLC to Plaintiffs' first amended complaint. For the reasons set forth, the Court rules as follows: (a) demurrers to the first through fourth causes of action and sixth cause of action – **sustained, with leave to amend**; and (b) demurrer to fifth cause of action - **overruled**.

Background

This action involves claims for defects in a 2022 Dodge Charge vehicle manufactured by defendant FCA US LLC. (First Am. Compl. ("FAC") ¶¶ 9, 12, 14.) Plaintiffs allege that on or about June 29, 2022, they "entered into" a written warranty with FCA covering the vehicle. (FAC ¶ 9.) Plaintiffs allege the defendant's vehicle has a 6.4L engine which is defective. (FAC ¶¶ 12, 14.) They allege the vehicle had other defects as well, that they presented the vehicle multiple times to FCA's authorized repair facilities, that the repair facilities twice kept the vehicle for over a month, but that the repair facilities have been unable to fix the engine defects. (FAC ¶¶ 14- 16.)

The operative FAC includes six causes of action. The first four causes of action allege violations of the Song-Beverly Consumer Warranty Act, Civil Code section 1790 *et seq.* ("Song-Beverly Act"), including breach of the express warranty and breach of the implied warranty of merchantability. The fifth cause of action alleges violation of the Magnuson-Moss Warranty Act, 15 U.S.C. section 2301 *et seq.* ("MM Act"), and the sixth cause of action alleges a claim for fraudulent inducement and/or fraudulent concealment. FCA has demurred to each of the six causes of action.

Legal Standards for Ruling on Demurrer

In ruling on the demurrer, the Court must accept as true all well-pleaded factual allegations of the complaint, but not " 'contentions, deductions or conclusions of fact or law.' " (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.) (*See also City of Dinuba v. County of Tulare* (2007) 41 Cal.4th 859, 865.) The Court gives the complaint "a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan, supra*, 39 Cal. 3d at 318.) In ruling on the demurrer, the Court considers only the complaint and matters of which the Court can take judicial notice. (*Blank v. Kirwan, supra*, 39 Cal.3d at 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) Statutory causes of action must be pleaded with particularity; the "complaint must plead every fact which is essential to the cause of action under the statute." [Citation omitted.] (*Baskin v. Hughes Realty, Inc.* (2018) 25 Cal.App.5th 184, 207.) (*See also Fischer v. San Pedro Peninsula Hospital* (1989) 214 Cal.App.3d 590, 604.)

Analysis

A. Demurrers to Song-Beverly Act Causes of Action

FCA asserts both a general demurrer and demurrer for lack of jurisdiction to the first through fourth causes of action. FCA contends that Plaintiffs have not alleged that their vehicle was sold in this state, which is essential to state these causes of action, as the Song-Beverly Act only applies to vehicles sold in this state. FCA asserts in its memorandum that the vehicle was actually sold out of state (in Arizona). The Court does not consider that assertion in ruling on the demurrer as it is outside the pleadings and not a matter subject to judicial notice (nor has FCA made a request for judicial notice). (*Blank v. Kirwan, supra*, 39 Cal.3d at 318.)

Plaintiffs allege that they purchased the vehicle from Airpark Dodge Chrysler Jeep, but they do not allege where that dealership is located. (FAC ¶ 11.) They make a series of allegations that the vehicle is "consumer goods," Plaintiffs are "buyers," and FCA is a "manufacturer" or "distributor" within the meaning of the Song-Beverly Act, but they do not allege that the sale of the vehicle, within the meaning of the Song-Beverly Act, was made in this state. (FAC ¶ 17; Civ. Code §§ 1791(n)(1) [sale means "passing of title from the seller to the buyer for a price"], 1792 [sale of consumer goods "that are sold at retail in this state" shall include manufacturer's implied warranty of merchantability], 1793.2 [duties of manufacturer as to express warranty applicable to "goods sold in this state"].)

Case law binding on the Court is clear that the application of the Song-Beverly Act is limited to vehicles sold in California. (*Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 487-491, 493 ["Although the Act treats motor vehicles differently from other types of consumer goods in several ways, we find no indication that the Legislature intended to treat motor vehicles differently with respect to the limitation on the Act's coverage to goods sold in California," "the Legislature intended the Act to apply only to vehicles sold in California," and "the Legislature contemplated that the Act would apply only if the goods were purchased in California"]; *Davis v. Newmar Corp.* (2006) 136 Cal.App.4th 275, 278 ["Davis argues that because he negotiated the sale of the motor home in California, pursuant to a contract governed by California law, he can pursue a claim under the Act, even though he took delivery of the motor home in Nevada. We disagree. Under California law, title to the motor home passed upon delivery—in Nevada. [Citations omitted.] Because title passed outside of California, the Act does not apply. [Citation omitted.]"].)

Plaintiffs do not dispute the legal proposition that the Song-Beverly Act generally applies only to a vehicle sold in California. In opposition to the demurrer on this point, Plaintiffs instead argue that the "pleadings do not disclose that the Song-Beverly Act does not cover the vehicle." (Opp. p. 13.) As set forth above, statutory causes of action must be pled with specificity; the facts necessary to meet each requirement of the statute to state the statutory claim must be alleged, which in this case includes that the vehicle was sold in California or title to the vehicle transferred to Plaintiffs in California (Civ. Code § 1791(n)(1)). (*Baskin, supra*, 25 Cal.App.5th at 207; *Fischer, supra*, 214 Cal.App.3d at 604.) The FAC does not include that essential factual allegation showing that the Song-Beverly Act does apply to the vehicle to make Plaintiffs' claims under the statute viable.

Plaintiffs also argue the Song-Beverly Act applies to some vehicles sold out-of-state, citing Civil Code section 1795.8. That statute provides that the Song-Beverly Act can extend to the sale of a motor vehicle to a member of the Armed Services even though the vehicle is purchased in another state if the two conditions of the statute are met with respect to the sale, including that the "member of the Armed Forces was stationed in or a resident of this state at the time he or she purchased the motor vehicle or at the time he or she filed an action pursuant to this chapter." (Civ. Code § 1795.8(a) and (b).) Plaintiffs have not alleged any facts showing the provisions of Civil Code section 1795.8 apply to Plaintiffs, the vehicle, and this lawsuit.

On these grounds, the demurrers to the first through fourth causes of action are **sustained, with leave to amend**. If Plaintiffs can truthfully allege additional facts regarding where the vehicle was sold, where title to the vehicle was transferred to Plaintiffs, or that the conditions of Civil Code section 1795.8, then they will have an opportunity to amend the FAC to do so to try to state these causes of action.

B. Demurrer to the Magnuson-Moss Act Cause of Action

Title 15 section 2310(d) of the Magnuson-Moss Act provides in pertinent part: "Subject to subsections (a)(3) [informal settlement procedure] and (e) [class actions], a consumer who is damaged by the failure of a supplier, warrantor, or service contractor to comply with any obligation under this title, or under a written warranty, implied warranty, or service contract, may bring suit for damages and other legal and equitable relief—[¶] in any court of competent jurisdiction in any State" (15 U.S.C. § 2310(d)(1)(A) [emphasis added].) The Ninth Circuit has interpreted this provision to mean that "the Magnuson-Moss Warranty Act creates a federal private cause of action for a warrantor's failure to comply with the terms of a written warranty." (*Milicevic v. Fletcher Jones Imps., Ltd.* (9th Cir. 2005) 402 F.3d 912, 917.) (See also *Romo v. FFG Ins. Co.* (C.D. Cal. 2005) 397 F. Supp. 2d 1237, 1241 also cited by Plaintiffs [stating "there is nothing to support the notion asserted by Defendant that the Magnuson-Moss Act adopts the substance of underlying state law in addition to the scope of remedies. . . . Congress did provide for a substantive right of action in the provisions of the Act, and it would frustrate congressional purpose to circumscribe the scope of that protection because state law is less expansive."].)

Defendant's argument that the fifth cause of action under the MM Act fails because it is dependent on Plaintiffs' claim for breach of the implied warranty alleged in paragraph 60 of the FAC both inaccurately describes the allegations of the fifth cause of action and is unsupported by any legal authority. (MPA ISO Dem. p. 12, ll. 6-12.) The FAC actually cites both the express written warranty and

implied warranties as the basis for the MM Act claim. (FAC ¶¶ 9, 10, 14-20, 64, 68.)

In its reply, Defendant does not address the authorities cited by Plaintiffs in support of their position that the MM Act provides a substantive private right of action against a warrantor for noncompliance with the terms of a written warranty. Defendant merely reiterates its position that an MM Act claim is derivative of the state law claims and only provides relief where a valid state law warranty claim exists, propositions Defendant again fails to support with citation to any legal authority. (Reply. P. 9, ll. 7-11.)

The Court is not inclined to sustain a demurrer based on legal arguments unsupported by any legal authority in defendant's briefing. (*Lafferty v. Wells Fargo Bank* (2013) 213 Cal. App. 4th 545, 571-572 ["When a point is asserted without argument and authority for the proposition, 'it is deemed to be without foundation and requires no discussion by the reviewing court.'"]; *Mattco Forge, Inc. v. Arthur Young & Co.* (1997) 52 Cal. App. 4th 820, 850 ["In a page and a half, and with citation to but one case for the general proposition the conduct was despicable, [Cross-Appellant appeals] from the granting of the directed verdict motion. This cursory treatment requires no discussion by us."].) The demurrer to the fifth cause of action is therefore **overruled**.

C. Demurrer to the Sixth C/A – Fraudulent Inducement/Fraudulent Concealment

"In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler v. Berg, Inc.* (2017) 7 Cal.App.5th 276, 311.) The essential elements of a fraudulent concealment cause of action are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. [Citation, internal quotation marks omitted.]" (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850.) (See also *Bigler-Engler, supra*, 7 Cal.App.5th at 310-311.)

The facts stating the essential elements of a fraud cause of action must be pleaded with specificity such that the plaintiff must allege "facts which 'show how, when, where, to whom, and by what means the representations were tendered.'" [Citation omitted.]" (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 645.) The specificity standard for alleging a fraud claim takes into account the difference between a fraud claim based on affirmative misrepresentations and one based on concealment. (*Alfaro v. Community Housing Improvement System and Planning Assn., Inc.* (2009) 171 Cal.App.4th 1356, 1384 ["[I]t is harder to apply this rule to a case of simple nondisclosure. 'How does one show "how" and "by what means" something didn't happen, or "when" it never happened, or "where" it never happened?' "].) "Less specificity should be required of fraud claims 'when "it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy," [citation]; "[e]ven under the strict rules of common law pleading, one of the

canons was that less particularity is required when the facts lie more in the knowledge of the opposite party" [Citation omitted.]" (*Id.* at 1384.)

1. Economic Loss Rule

FCA contends the *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1 decision supports that the economic loss rule bars the fraudulent inducement/fraudulent concealment claim. "The economic loss rule provides that, '[i]n general, there is no recovery in tort for negligently inflicted "purely economic losses," meaning financial harm unaccompanied by physical or property damage.' [Citation omitted.] For claims arising from alleged product defects, '[e]conomic loss consists of []damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property[]' [Citation, internal quotation marks omitted.]" (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 837.)

The Court in *Rattagan* explained that the economic loss rule is a "specific application" of the "independent tort principle" doctrine differentiating between contract and tort obligations, which it describes in exhaustive detail. (*Rattagan, supra*, 17 Cal.5th at 37.) "[T]ort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant's injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant's conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed." (*Id.* at 20-21.) "[T]o be held liable in tort, a defendant must commit a tort. If all the defendant has allegedly done is violate the terms of the parties' contract, depriving the plaintiff of the benefits the contract ensures, the defendant's liability is limited by the contract. Broader tort liability only arises if a defendant violates an independent legal duty and the type of harm that ensues was not reasonably contemplated or accounted for by the contractual parties." (*Id.* at 37.)

Rattagan holds claims grounded in fraudulent concealment are not barred by the economic loss rule, to the extent the concealment violates an independent legal duty and is not based solely on a breach of the contract terms. (*Rattagan, supra*, 17 Cal.5th at 30-38 [explaining the *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979 decision] and 42-45 [holding economic loss rule does not bar claim for fraudulent concealment, not just claim for fraud based on affirmative misrepresentations].) FCA contends that the *Rattagan* decision controls to the extent *Dhital* is inconsistent. Though the California Supreme Court granted review in *Dhital*, it dismissed the petition for review after it issued its decision in *Rattagan* and explicitly did not address the issues raised in *Dhital*. (*Rattagan, supra*, 17 Cal.5th at 41, fn. 12.)

Plaintiffs point out that neither *Rattagan* nor *Robinson* involved a claim of fraud in the inducement. Rather, they both involved fraud arising after the contract was entered into and during the performance of the contract. (See *Rattagan, supra*, 17 Cal.5th at 38, 40 ["[F]rom a policy standpoint, there is no logical reason to distinguish among various species of actionable fraud committed while otherwise performing a contract, assuming the tort elements can be established independently of the contractual rights and obligations"].) The Court agrees those decisions address a different theory than what is pled in the FAC and that the *Dhital* decision directly addresses the fraudulent inducement/fraudulent concealment alleged by Plaintiffs.

In *Dhital*, the Court in *Dhital* recognized that there must be a violation of an independent tort duty for the fraudulent inducement exception to the economic loss rule to apply, and the Court held the complaint stated the fraud cause of action in that case, at least at the pleading stage. (*Dhital*, *supra*, 84 Cal.App.5th at 833, 844-845.) "In our view, that independence is present in the case of fraudulent inducement (whether it is achieved by intentional concealment or by intentional affirmative misrepresentations), because a defendant's conduct in fraudulently inducing someone to enter a contract is separate from the defendant's later breach of the contract or warranty provisions that were agreed to." (*Id.* at 841 [emphasis added].) Based on *Dhital* and *Rattagan*, the economic loss rule does not necessarily bar the fraudulent inducement/fraudulent concealment claim.

2. Transactional Relationship and Harm Not Reasonably Contemplated When Contract Was Formed

Bigler-Engler holds that the "necessary relationship giving rise to a duty to disclose" involves a " 'transaction' " between the plaintiff and defendant which the Court held did not exist in that case. (*Bigler-Engler*, *supra*, 7 Cal.App.5th at 311, 314.) The facts of *Bigler-Engler* are distinguishable, as the medical device in that case was prescribed by a doctor for the plaintiff as part of her post-surgical care, and the device was rented to the plaintiff by a third party surgery center which owned the device. (*Id.* at 314.)

The Court in *Dhital* found the complaint sufficiently alleged a transactional relationship between the car buyer and the manufacturer by alleging the dealership was the manufacturer's agent for the sale of the vehicle. (*Dhital*, *supra*, 84 Cal.App.5th at 834, 844.) The Court rejected Nissan's argument that the plaintiffs there did not adequately plead a buyer-seller transactional relationship to state a fraudulent inducement/fraudulent concealment claim at least at the pleading stage because the plaintiffs alleged "that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers." (*Id.* at 844.) The FAC alleges that Airpark Dodge Chrysler Jeep is an FCA authorized retail dealership (FAC ¶ 11), which is not the same as an allegation that the dealership is FCA's agent and was acting as FCA's agent in the sale of the vehicle to Plaintiffs.

Plaintiffs also cite *Bader v. Johnson & Johnson* (2022) 86 Cal.App.5th 1094 as "on point" (Opp. p. 7, l. 3), but in *Bader*, there was undisputed evidence that the defendant "was involved in retail sales of [the product] to consumers and profited therefrom," facts which are not alleged in the FAC. (*Id.* at 1132-1133.) Though Plaintiffs allege they "entered into" the express warranty with FCA, it is not clear whether Plaintiffs are alleging they entered into a direct transaction with FCA through the express warranty, or whether they received the warranty only because it accompanied the vehicle when they purchased the car from the dealership where they bought the vehicle. (*Compare* FAC ¶ 9 to FAC ¶ 11 and Exh. A.) (*See also Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1134-1135 ["Even though a buyer may receive a manufacturer's warranty because it bought a manufacturer's car from a dealer, 'nothing in the California Uniform Commercial Code suggests that this automatically makes the manufacturer's warranty a part of the sale contract between the buyer and the dealership.' [Citation omitted.]"].)

3. Failure to Allege Claim with Specificity

Given the specificity requirement for pleading fraudulent inducement/fraudulent concealment, FAC fails to sufficiently allege facts to state the existence of a transactional relationship between Plaintiffs

and FCA for the reasons stated. There is an arguable conflict between the allegations in paragraphs 9 and 11 of the FAC (and the warranty attached as Exhibit A to the FAC, which on its face bears no indication of any direct dealing between Plaintiffs and FCA rather than the written warranty merely accompanying the vehicle). The FAC does not include factual allegations regarding the dealership's agency relationship found sufficient in *Dhital* or the involvement of FCA in retail sales and its profiting from those sales as in *Bader*. Other allegations by Plaintiffs in support of this cause of action are similarly generic and vague, even as to facts that should be within their own knowledge and that may well not be known to FCA, including the "sales representatives" Plaintiffs conferred with before buying the vehicle (FAC ¶¶ 12, 83), and the "marketing and advertising materials" and "materials disseminated by FCA concerning FCA Vehicles" Plaintiffs allegedly reviewed before they purchased the car. (FAC ¶¶ 12, 83.) Plaintiffs may be able to allege those specific facts, but the FAC does not do so.

On these grounds, the demurrer to the sixth cause of action is **sustained, with leave to amend**.

9. 9:00 AM CASE NUMBER: C24-03170

CASE NAME: MARIE DUFFY VS. FCA US, LLC.

*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT
FILED BY: FCA US, LLC.

TENTATIVE RULING:

Before the Court is a motion by FCA US, LLC to strike Plaintiffs' first amended complaint. For the reasons set forth, the motion is **granted, with leave to amend**. Paragraph f of the Prayer for Relief of the first amended complaint is stricken, subject to Plaintiffs' right to amend pursuant to this ruling and the concurrent ruling on the FCA demurrer.

Background

The relevant factual background is set forth in the Court's concurrent ruling on FCA's demurrer to the first amended complaint ("FAC").

Legal Standards for Striking Punitive Damages and Analysis

The Court may strike allegations that are "irrelevant, false or improper matter" or any portion of a pleading "not drawn . . . in conformity with the laws of this state." (Code Civ. Proc. § 436(a) and (b).) It is in the Court's discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Under Civil Code section 3294, "[i]n an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. (Civ. Code § 3294(a).) A motion to strike is properly granted when a complaint fails to allege facts to state a *prima facie* claim for punitive damages under the standards of the statute. (*Turman v. Turning Point of Cent. California, Inc.* (2010) 191 Cal.App.4th 53, 63.) Alleging an intentional tort alone is not enough to support a claim for